

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

11. DAVID BELL V. MEGAN GUERRERO

24FL0556

Respondent filed an ex parte application for emergency orders on November 13, 2025. The court denied the ex parte application on November 17, 2025. The parties were referred to an emergency set Child Custody Recommending Counseling (CCRC) appointment on December 9, 2025, with a review hearing scheduled for January 8, 2026. On November 17th Respondent filed a Request for Order (RFO) seeking custody and parenting plan orders, as well as a finding that Family Code section 3044 has been rebutted. Proof of Service shows Petitioner was mail served on November 25, 2025.

Both parties attended the CCRC appointment on December 9, 2025. A report with recommendations was filed with the court on December 31, 2025. Copies were mailed to the parties the same day.

Parties appeared for the hearing on January 8, 2026. The court inquired of the parties as to the status of the Domestic Violence Restraining Order Request by Respondent in San Joaquin County as well as the pending criminal charges against Petitioner in San Joaquin County. The court made parenting plan orders and set a review hearing for February 26, 2026. The court directed parties to file and serve Supplemental Declarations at least 10 days prior to the review hearing.

Respondent filed a Supplemental Declaration on February 10, 2026. It was mail served the same day. Respondent asserts the current parenting plan is working well and requests additional parenting time. Respondent seeks clarification as to communication between the parties.

Petitioner filed a Responsive Declaration on February 13, 2026. The court deems this to be a Supplemental Declaration. Petitioner seeks an immediate termination of overnight parenting time with Respondent.

Petitioner filed a Responsive Declaration on May 7, 2026. The court deems this to be a Supplemental Declaration. Respondent was mail served on May 7, 2026.

Respondent filed a Supplemental Declaration on May 7, 2026. It was served on Petitioner on May 7, 2026.

The court finds it must take testimony as to the Family Code section 3044 presumption. As such, the parties are ordered to appear to select Mandatory Settlement Conference and trial dates.

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TENTATIVE RULING #11: PARTIES ARE ORDERED TO APPEAR TO SELECT MANDATORY SETTLEMENT CONFERENCE AND TRIAL DATES.

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12. NICOLE CRADDOCK V. NATHAN CRADDOCK

24FL0996

Petitioner filed a Request for Order (RFO) on April 7, 2026, seeking child and spousal support orders. Petitioner concurrently filed an Income and Expense Declaration. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

The matter is dropped from calendar due to the lack of proper service.

TENTATIVE RULING #12: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.